

Novartis Pharmaceuticals Corporation v. Apotex Inc. et al

Plaintiff:	Novartis Pharmaceuticals Corporation
Defendant:	Apotex Inc. and Apotex Corp.
Case Number:	1:2026cv01281
Filed:	October 5, 2026
Court:	U.S. District Court for the District of Delaware
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

Date Filed	Document Text
October 5, 2026	Filing 6 Summons Issued as to Apotex Corp. on 10/5/2026; Apotex Inc. on 10/5/2026. (Attachments: #1 Summons Issued)(mpb)
October 5, 2026	Filing 5 Disclosure Statement pursuant to Rule 7.1: identifying Corporate Parent Novartis AG for Novartis Pharmaceuticals Corporation - filed by Novartis Pharmaceuticals Corporation. (mpb)
October 5, 2026	Filing 4 Report to the Commissioner of Patents and Trademarks for Patent/Trademark Number(s) 8,580,304; 9,155,706; 9,271,941; 9,399,021 ; 8,703,781; 10,869,869. (Attachments: #1 Patent/Trademark Report)(mpb)
October 5, 2026	Filing 3 Supplemental information for patent cases involving an Abbreviated New Drug Application (ANDA) - Date Patentee(s) Received Notice: 9/1/2026. Date of Expiration of Patent: See Attached.Thirty Month Stay Deadline: no earlier than 3/1/2029. (mpb)
October 5, 2026	Filing 2 Notice, Consent and Referral forms re: U.S. Magistrate Judge jurisdiction. (mpb)
October 5, 2026	Filing 1 COMPLAINT against Apotex Corp., Apotex Inc. (Filing fee \$ 405, receipt number ADEDC-5082468) - filed by Novartis Pharmaceuticals Corporation. (Attachments: #1 Exhibits A-F, #2 Civil Cover Sheet)(mpb)

I. Executive Summary and Procedural Information

Parties & Counsel:

Plaintiff: [Novartis Pharmaceuticals Corporation](#) (Delaware)

Defendant: [Apotex Inc.](#) (Canada) and Apotex Corp. (Delaware)

Plaintiff's Counsel: [McCarter & English, LLP](#)

Case Identification: [1:26-cv-01281](#), D. Del., 10/05/2026

Venue Allegations: Venue is alleged to be proper in Delaware for Apotex Corp. as it is a Delaware corporation and for Apotex Inc. as it is a Canadian corporation subject to personal jurisdiction in the district.

Core Dispute: Plaintiff alleges that Defendants' filing of an Abbreviated New Drug Application (ANDA) to market a generic version of the cancer drug Mekinist® (trametinib) constitutes an act of infringement of six patents covering pharmaceutical compositions and methods of treatment.

Technical Context: The technology relates to formulations of the MEK inhibitor trametinib and its use, alone or in combination with the B-RAF inhibitor dabrafenib, for treating melanoma.

Key Procedural History: The action arises from Defendants' submission of ANDA No. 220471 to the FDA and a subsequent notice letter to Plaintiff, which included a Paragraph IV certification asserting that the patents-in-suit are invalid, unenforceable, and/or will not be infringed by the proposed generic product.

Case Timeline

Date	Event
2009-10-16	Priority Date for '781 Patent
2010-12-20	Priority Date for '304 , '706 , '941 , '021 Patents
2012-09-04	Priority Date for '869 Patent
2013-05-29	FDA approval of Mekinist®
2013-11-12	Issue Date of '304 Patent
2014-04-22	Issue Date of '781 Patent
2015-10-13	Issue Date of '706 Patent
2016-03-01	Issue Date of '941 Patent
2016-07-26	Issue Date of '021 Patent
2020-12-22	Issue Date of '869 Patent

Date	Event
2026-08-31	Apotex's Notice Letter to Novartis
2026-10-05	Complaint Filing Date

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 8,580,304 - "Pharmaceutical Composition"

The Invention Explained:

Problem Addressed: The patent describes challenges in creating stable, effective oral dosage forms for certain drug compounds. Specifically, it notes that the trametinib dimethyl sulfoxide solvate (Compound A) can revert to a less soluble, unsolvated form (Compound B) when exposed to moisture, and that the compound can also suffer from photo-instability, both of which can negatively impact its therapeutic effectiveness. '304 Patent, col. 3:62-4:16

The Patented Solution: The patent discloses a solid oral pharmaceutical tablet designed to overcome these issues. The solution involves formulating the tablet with excipients that are "substantially free of water," limiting the amount of the less soluble unsolvated drug to below 20%, and utilizing a film coating with a colorant like iron oxide to improve photo-stability. '304 Patent, abstract '304 Patent, col. 4:26-

34

Technical Importance: This formulation technology provides a method to deliver a potent but poorly soluble and unstable anti-cancer compound as a stable, reliable oral tablet, which is critical for patient administration and consistent therapeutic effect. '304 Patent, col. 2:30-34

Key Claims at a Glance:

- The complaint asserts independent claim 1 and dependent claim 8 **Compl. ¶43**
- The essential elements of independent claim 1 include:
 - A pharmaceutical tablet comprising a specific amount of trametinib dimethyl sulfoxide solvate (selected from about 0.5635 mg, 1.127 mg, or 2.254 mg);
 - The tablet contains from about 25% to about 89% by weight of one or more excipients that are substantially free of water; and
 - The amount of unsolvated drug in the tablet does not exceed about 20%.
- The complaint reserves the right to assert additional claims **Compl. ¶50**

U.S. Patent No. 9,155,706 - "Pharmaceutical Composition"

The Invention Explained:

Problem Addressed: Like the '304 Patent, the '706 Patent addresses the formulation challenges associated with trametinib, including poor solubility, which can lead to low and inconsistent patient exposure when administered orally. '706 Patent, col. 5:5-14

The Patented Solution: The patent discloses improving the drug's bioavailability by reducing its particle size. The invention is a pharmaceutical tablet where the trametinib particles are "micronized," with at least 50% of the particles having a size of 30 microns or less. '706 Patent, abstract '706 Patent, col. 3:9-

22 The patent includes data showing that micronized drug substance leads to significantly improved drug exposure (AUC) in preclinical studies. '706 Patent, Fig. 1

Technical Importance: Micronization is a critical formulation strategy for enhancing the dissolution rate and oral bioavailability of poorly water-soluble drugs, making it possible to effectively deliver such compounds in a tablet form. '706 Patent, col. 35:1-4

Key Claims at a Glance:

- The complaint asserts independent claim 1 and dependent claims 8 and 16 **Compl. ¶¶68**
- The essential elements of independent claim 1 include:
 - A pharmaceutical tablet comprising trametinib dimethyl sulfoxide solvate;
 - Wherein at least 50% of the drug particles have a particle size of 30 microns or less; and
 - The drug particles are micronized.
- The complaint reserves the right to assert additional claims **Compl. ¶¶74**

Multi-Patent Capsules

□ **U.S. Patent No. 9,271,941** ("the '941 patent"), titled "Pharmaceutical Composition," issued on March 1, 2016.

□ **Technology Synopsis:** This patent addresses the same formulation challenges of trametinib dimethyl sulfoxide solvate as the '304 and '706 patents. The claimed solution is a pharmaceutical tablet with specific constraints on excipient water content ("substantially free of water") and drug particle size ("at least 50% of the drug particles have a particle size of 30 microns or less") to ensure stability and bioavailability. **'941 Patent, abstract**

'941 Patent, col. 2:35-51

□ **Asserted Claims:** Independent claim 1 and dependent claim 8 **Compl. ¶¶91**

□ **Accused Features:** The accused generic tablet is alleged to contain trametinib dimethyl sulfoxide solvate, include excipients that are substantially free of water, and have at least 50% of its drug particles sized at 30 microns or less **Compl. ¶¶92-94**

□ **U.S. Patent No. 9,399,021** ("the '021 patent"), titled "Pharmaceutical Composition," issued on July 26, 2016.

□ **Technology Synopsis:** This patent also relates to pharmaceutical compositions of trametinib dimethyl sulfoxide solvate. It claims tablets where the drug particles are micronized and/or have a particle size of 30 microns or less, a solution intended to overcome the compound's low solubility and ensure adequate patient exposure upon oral administration. **'021 Patent, abstract**

'021 Patent, col. 5:5-14

□ **Asserted Claims:** Independent claim 1 and dependent claims 8 and 17 **Compl. ¶¶115**

□ **Accused Features:** The accused generic tablet is alleged to contain trametinib dimethyl sulfoxide solvate where the drug particles are micronized and at least 50% have a particle size of 30 microns or less **Compl. ¶¶116-118**

□ **U.S. Patent No. 8,703,781** ("the '781 patent"), titled "Pharmaceutical combination of MEK inhibitor and B-RAF inhibitors," issued on April 22, 2014.

□ **Technology Synopsis:** This patent addresses the need for more effective cancer treatments, noting that combining a MEK inhibitor (trametinib) with a B-RAF inhibitor (dabrafenib) can overcome resistance mechanisms and provide enhanced efficacy compared to monotherapy. The invention covers combinations of these two specific inhibitors and methods of using them to treat cancer. **'781 Patent, col. 4:5-12**

'781 Patent, col. 4:50-59

□ **Asserted Claims:** Independent claim 1 and dependent claim 7 **Compl. ¶¶139**

□ **Accused Features:** The complaint alleges that Apotex's trametinib ANDA product is intended to be used in combination with a generic dabrafenib product, for which Apotex is also seeking approval, to treat melanoma (Compl. ¶¶141-143; Compl. ¶¶147).

□ **U.S. Patent No. 10,869,869** ("the '869 patent"), titled "Method of Adjuvant Cancer Treatment," issued on December 22, 2020.

□ **Technology Synopsis:** The patent addresses the need for effective adjuvant therapy for high-risk melanoma patients after their tumors have been surgically removed, in order to prevent disease relapse. The claimed solution is a method of treatment comprising administering specific doses of dabrafenib (150

mg twice daily) and trametinib (2 mg once daily) to increase relapse-free survival. **'869 Patent, abstract**

'869 Patent, col. 5:10-22

Asserted Claims: Independent claim 1 **Compl. ¶167**

Accused Features: The complaint alleges that the proposed labeling for Apotex's ANDA product, in combination with its generic dabrafenib product, will instruct for the administration of the two drugs at the claimed dosages for the adjuvant treatment of resected melanoma, thereby inducing infringement **Compl. ¶¶174-175**

III. The Accused Instrumentality

Product Identification: The accused instrumentality is "Apotex's ANDA Product," a generic version of the 1 mg dosage form of Mekinist® (trametinib dimethyl sulfoxide) tablets, submitted to the FDA for approval under ANDA No. 220471 **Compl. ¶2 Compl. ¶34** No probative visual evidence provided in complaint.

Functionality and Market Context: The accused product is an oral tablet containing the active pharmaceutical ingredient trametinib dimethyl sulfoxide solvate, an anticancer medication indicated for treating certain types of melanoma **Compl. ¶33 Compl. ¶44** The complaint alleges, on information and belief, that the product is formulated with specific characteristics that mirror the claims of the patents-in-suit, including limitations on water content in excipients, the amount of unsolvated drug, and the particle size of the active ingredient **Compl. ¶¶45-47 Compl. ¶¶70-71** The complaint further alleges that Apotex intends to market this product for use in combination with a generic version of dabrafenib, another cancer drug **Compl. ¶143 Compl. ¶171** The product is intended to be a lower-cost, generic alternative to the branded drug Mekinist®, to be sold prior to the expiration of the patents-in-suit **Compl. ¶2**

IV. Analysis of Infringement Allegations

The complaint's infringement allegations are made on "information and belief" based on Apotex's ANDA submission, which is not publicly available **Compl. ¶35** The allegations largely mirror the language of the asserted claims.

'304 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A pharmaceutical tablet comprising: a) an amount of a drug, which is N-{3-[3-cyclopropyl-5-(2-fluoro-4-iodo-phenylamino)-6,8-dimethyl-2,4,7-trioxo-3,4,6,7-tetrahydro-2H-pyrido[4,3-d]pyrimidin-1-yl]phenyl} acetamide dimethyl sulfoxide solvate...	Apotex's ANDA Product is a pharmaceutical tablet that contains trametinib dimethyl sulfoxide solvate.	¶44	col. 1:10-18
...selected from: about 0.5635 mg, about 1.127 mg, and about 2.254 mg...	The accused product is a generic version of the 1 mg dosage form of Mekinist®, corresponding to the claimed 1.127 mg amount of the solvate.	¶34	col. 4:50-54

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
b) the tablet contains from about 25% to about 89% by weight of one or more excipients, where the excipients are substantially free of water;	Apotex's ANDA Product contains from about 25% to about 89% by weight of one or more excipients that are substantially free of water.	¶45	col. 23:5-20
and c) the amount of unsolvated drug does not exceed about 20%.	The amount of unsolvated drug in Apotex's ANDA Product does not exceed about 20%.	¶46	col. 4:54-64
'706 Patent Infringement Allegations			

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A pharmaceutical tablet comprising N-{3-[3-cyclopropyl-5-(2-fluoro-4-iodo-phenylamino)-6,8-dimethyl-2,4,7-trioxo-3,4,6,7-tetrahydro-2H-pyrido[4,3-d]pyrimidin-1-yl]phenyl}acetamide dimethyl sulfoxide solvate...	Apotex's ANDA Product is a pharmaceutical tablet that contains trametinib dimethyl sulfoxide solvate.	¶69	col. 1:11-19
...wherein at least 50% of the drug particles have a particle size of 30 microns or less...	At least 50% of the drug particles in Apotex's ANDA Product have a particle size of 30 microns or less.	¶70	col. 3:15-22
...and the drug particles are micronized.	The drug particles are micronized in Apotex's ANDA Product.	¶71	col. 3:9-12

identified Points of Contention:

Evidentiary Questions: As this is a Hatch-Waxman action, the infringement analysis is based on the contents of Apotex's confidential ANDA filing. A central point of contention will be an evidentiary one: does the product specification as described in the ANDA, which dictates what Apotex is approved to market, actually meet every limitation of the asserted claims? The complaint's "information and belief" allegations will be tested against the factual record established in discovery.

Scope Questions (Formulation Patents): The dispute may center on the construction of terms of degree. For instance, for the '304, '941, and '021 patents, a key question is what technical standard defines "substantially free of water." For the '706, '941, and '021 patents, a question may arise as to whether the process used by Apotex falls within the scope of the term "micronized."

Scope Questions (Method Patents): For the '781 and '869 patents, the dispute will likely focus on inducement. A primary question will be whether the language in Apotex's proposed product labeling, in concert with its marketing plans for a companion generic dabrafenib, is sufficient to establish that Apotex possessed the specific intent to encourage or instruct physicians and patients to perform the patented methods of combination therapy.

V. Key Claim Terms for Construction

The Term:	"substantially free of water" (from claim 1 of the '304, '941, and '021 patents)
Context and Importance:	This term is qualitative and central to the infringement analysis for the formulation patents. The patent ties this feature to preventing the degradation of the active solvate into a less soluble form. Practitioners may focus on this term because its definition will determine whether the water content of Apotex's formulation, as disclosed in its ANDA, falls within the claim scope.
Intrinsic Evidence for Interpretation:	
Evidence for a Broader Interpretation:	The patent does not provide a specific numerical percentage for water content, instead describing the use of "anhydrous versions of non-anhydrous excipients" and processes like "dry direct compression" that avoid added water. This may support an interpretation that focuses on the avoidance of added water during manufacturing, rather than a strict limit on inherent moisture. '304 Patent, col. 2:45-48 '304 Patent, col. 37:40-52
Evidence for a Narrower Interpretation:	The specification repeatedly emphasizes the goal of avoiding desolvation by controlling moisture. A party could argue that the term implies a very low, near-zero moisture level is required to achieve the patent's stated objective. The patent states that "very minor amounts of water can be in the excipient component without adversely affecting the performance." '304 Patent, col. 22:65-23:3 This language may be cited to support a narrow, functionally-defined limit tied to the prevention of desolvation.
The Term:	"micronized" (from claim 1 of the '706 and '021 patents)
Context and Importance:	The definition of this term is critical for determining infringement of the '706 and '021 patents, as it describes the physical state of the active drug particles. The dispute will likely concern whether Apotex's particle size reduction process meets the definition of "micronized" as used in the patent.
Intrinsic Evidence for Interpretation:	
Evidence for a Broader Interpretation:	The patent provides a functional definition: "the drug particles are processed, for example by milling, bashing and/or grinding, to significantly reduce particle size over those produced naturally during chemical synthesis." '706 Patent, col. 36:1-6 This process-oriented definition, with its exemplary (non-limiting) list of methods, may support a broad construction covering any process that achieves a "significant" size reduction.
Evidence for a Narrower Interpretation:	A party may argue that the term is limited by the specific examples of "milling, bashing and/or grinding" or that the accused product's particle size reduction is not "significant" relative to the naturally synthesized particles. The patent also provides "suitable" particle size distributions (e.g., X90: NMT 10.6 µm), which could be argued to implicitly limit the scope of the broader term "micronized." '706 Patent, col. 36:7-11

VI. Other Allegations

Indirect Infringement:	The complaint alleges that Apotex plans and intends to actively induce infringement of all six patents-in-suit upon approval of its ANDA Compl. ¶152 Compl. ¶176 Compl. ¶199 Compl. ¶123 Compl. ¶153 Compl. ¶180 For the method of use patents ('781 and '869), the inducement allegations are based on the assertion that Apotex's proposed product labeling will instruct and encourage healthcare providers to prescribe and administer the accused product in an infringing manner, specifically in combination with dabrafenib to treat melanoma Compl. ¶145 Compl. ¶173
Willful Infringement:	The complaint does not explicitly use the term "willful infringement," but alleges that Apotex's activities "will be done with knowledge of the [patents-in-suit] and specific intent to infringe" Compl. ¶152 The complaint states this knowledge stems from at least Apotex's Notice Letter, which is pre-suit knowledge Compl. ¶3 The complaint requests a declaration that this is an "exceptional case" and an

award of attorneys' fees, which is consistent with a claim of egregious infringement behavior **Compl. p. 31, prayer (e)**

VII. Analyst's Conclusion: Key Questions for the Case

□A central issue will be one of **evidentiary proof and claim scope**: As the complaint is based on "information and belief," the case will turn on the factual details of Apotex's confidential ANDA filing. A key legal dispute will then be whether terms of degree in the formulation patents, such as "substantially free of water" and "micronized," can be construed to read on the specific characteristics of the generic product as it will be revealed in discovery.

□A second core issue will be one of **induced infringement**: For the method-of-use patents, the case will hinge on whether Apotex's proposed product label for its generic trametinib, particularly when considered with its alleged business strategy for a companion generic dabrafenib, contains sufficient instruction or encouragement to prove that Apotex possessed the specific intent to induce infringement of the patented combination therapy methods.

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF DELAWARE**

NOVARTIS PHARMACEUTICALS
CORPORATION,

Plaintiff,

v.

APOTEX INC. and APOTEX CORP.,

Defendants.

COMPLAINT

1. Plaintiff Novartis Pharmaceuticals Corporation (“Novartis” or “Plaintiff”) files this Complaint for patent infringement against Apotex Inc. and Apotex Corp. (collectively, “Apotex”), and by its attorneys, hereby alleges as follows:

2. Civil Action No. _____. This is an action for patent infringement under the patent laws of the United States, Title 35, United States Code, and for a declaratory judgment of patent infringement under 28 U.S.C. §§ 2201 and 2202, that arises out of Apotex’s submission of an Abbreviated New Drug Application (“ANDA”) to the U.S. Food and Drug Administration (“FDA”) seeking approval to commercially manufacture, use, offer for sale, sell, and/or import a generic version of Mekinist® (trametinib dimethyl sulfoxide) tablets, 1 mg, prior to the expiration of U.S. Patent No. 8,580,304 (“the ’304 patent”); U.S. Patent No. 9,155,706 (“the ’706 patent”); U.S. Patent No. 9,271,941 (“the ’941 patent”); U.S. Patent No. 9,399,021 (“the ’021 patent”); U.S. Patent No. 8,703,781 (“the ’781 patent”); and U.S. Patent No. 10,869,869 (“the ’869 patent”). These patents are referred to collectively herein as the “Patents-in-Suit.”

3. Apotex notified Novartis by letter dated August 31, 2026 (“Apotex’s Notice Letter”) that it had submitted to the FDA ANDA No. 220471 (“Apotex’s ANDA”), seeking approval from the FDA to engage in the commercial manufacture, use and/or sale of trametinib tablets, 1 mg, (“Apotex’s ANDA Product”) prior to the expiration of the ’304 patent, the ’706

patent, the '941 patent, the '021 patent, and the '781 patent, and thus prior to the expiration of the '869 patent as well.

PARTIES

4. Plaintiff incorporates each of the preceding paragraphs as if fully set forth herein.

5. Plaintiff Novartis Pharmaceuticals Corporation is a corporation organized and existing under the laws of the State of Delaware, with a principal place of business at 59 Route 10, East Hanover, New Jersey 07936. Novartis Pharmaceuticals Corporation is the holder of New Drug Application ("NDA") No. 204114 for the manufacture and sale of trametinib dimethyl sulfoxide tablets, 1 mg, which was initially approved by the FDA on May 29, 2013.

6. On information and belief, Apotex Inc. is a company organized and existing under the laws of Canada, with a principal place of business at 150 Signet Drive, Toronto, Ontario M9L 1T9, Canada.

7. On information and belief, Apotex Corp. is a corporation organized and existing under the laws of the State of Delaware, with a principal place of business at 2400 North Commerce Parkway, Suite 400, Weston, Florida 33326.

8. On information and belief, Apotex Corp. is the U.S. subsidiary of Apotex Inc., acts at the direction, and for the benefit, of Apotex Inc., and is controlled and/or dominated by Apotex Inc. Alternatively, on information and belief, Apotex Corp. and Apotex Inc. act at the direction, and for the benefit, of a common corporate parent, and are controlled and/or dominated by said common corporate parent.

9. On information and belief, Apotex is in the business of, among other things, manufacturing and selling generic versions of branded pharmaceutical products for the U.S. market.

JURISDICTION

10. Plaintiff incorporates each of the preceding paragraphs as if fully set forth herein.

11. Jurisdiction is proper in this Court pursuant to 28 U.S.C. §§ 1331, 1338(a), 2201 and 2202.

12. Plaintiff incorporates each of the preceding paragraphs as if fully set forth herein. Jurisdiction is proper in this Court pursuant to 28 U.S.C. §§ 1331, 1338(a), 2201. This Court has personal jurisdiction over Defendant Apotex Corp.

13. Apotex Corp. is subject to personal jurisdiction in Delaware because, among other things, it has purposely availed itself of the benefits and protections of Delaware's laws such that it should reasonably anticipate being haled into court here. Apotex Corp. is a corporation organized and existing under the laws of the State of Delaware, is qualified to do business in Delaware, and has appointed a registered agent for service of process in Delaware located at 800 North State Street Suite 304, Dover, Delaware 19901. It therefore has consented to general jurisdiction in Delaware. In addition, on information and belief, Apotex Corp., acting in concert with Apotex Inc., develops, manufactures, imports, markets, offers to sell, and/or sells generic drugs throughout the United States, including in the State of Delaware and therefore transacts business within the State of Delaware related to Novartis's claims, and/or has engaged in systematic and continuous business contacts within the State of Delaware.

14. On information and belief, Apotex Corp. knows and intends that following any approval of Apotex's ANDA No. 220471, Apotex Corp. will, in concert with Apotex Inc., manufacture and import into the United States Apotex's ANDA Product and directly or indirectly market, sell, and distribute Apotex's ANDA Product throughout the United States, including in Delaware. On information and belief, following any FDA approval of ANDA No. 220471, Apotex Corp. knows and intends that Apotex's ANDA Product will be marketed, used, distributed, offered for sale, and sold in the United States and within Delaware.

15. Apotex Corp. has previously used the process contemplated by the Hatch-Waxman Act to challenge branded pharmaceutical companies' patents by filing a certification of the type described in Section 505(j)(2)(A)(vii)(IV) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV), serving a notice letter on those companies, and engaging in patent litigation arising from the process contemplated by the Hatch-Waxman Act.

16. On information and belief, Apotex Corp., with knowledge of the Hatch-Waxman Act process, directed Apotex's Notice Letter to Novartis Pharmaceuticals Corporation, an entity incorporated in Delaware, and alleged in Apotex's Notice Letter that certain claims of the Patents-

in-Suit are invalid and/or not infringed. On information and belief, Apotex Corp. knowingly and deliberately challenged Novartis's patent rights, and knew when it did so that it was triggering the provisions of the Hatch-Waxman Act for Novartis to bring an action for patent infringement.

17. Because Novartis is incorporated in Delaware, Novartis suffers injury and consequences from Apotex Corp.'s filing of Apotex's ANDA, challenging Novartis's patent rights in Delaware. On information and belief, Apotex Corp. knew that it was deliberately challenging the patent rights of a Delaware entity. Apotex Corp. has been a litigant in connection with other infringement actions under the Hatch-Waxman Act and reasonably should have anticipated that by sending Apotex's Notice Letter to Novartis Pharmaceuticals Corporation, a Delaware corporation, that it would be sued in Delaware for patent infringement.

18. On information and belief, if Apotex's ANDA is approved, Apotex Corp. will directly or indirectly market, sell, and/or distribute Apotex's ANDA Product within the United States, including in Delaware, consistent with Apotex Corp.'s practices for the marketing and distribution of other generic pharmaceutical products. On information and belief, Apotex Corp. regularly does business in Delaware, and its practices with other generic pharmaceutical products have involved placing those products into the stream of commerce for distribution throughout the United States, including in Delaware. On information and belief, Apotex Corp.'s generic pharmaceutical products are used and/or consumed within and throughout the United States, including in Delaware. On information and belief, Apotex's ANDA Product will be prescribed by physicians practicing in Delaware, dispensed by pharmacies located within Delaware, and used by patients in Delaware. Each of these activities would have a substantial effect within Delaware and would constitute infringement of the claims of the Patents-in-Suit in the event that Apotex's ANDA Product is approved before the patents expire.

19. On information and belief, Apotex Corp. derives substantial revenue from generic pharmaceutical products that are used and/or consumed within Delaware, and which are manufactured by Apotex Corp. and/or for which Apotex Corp. is the named applicant on approved ANDAs. On information and belief, various products for which Apotex Corp. is the named applicant on approved ANDAs are available at retail pharmacies in Delaware.

20. This Court has personal jurisdiction over Defendant Apotex Inc.

21. Apotex Inc. is subject to personal jurisdiction in Delaware because, among other things, it has purposely availed itself of the benefits and protections of Delaware's laws such that

it should reasonably anticipate being haled into court here. On information and belief, Apotex Inc., acting in concert with Apotex Corp., develops, manufactures, imports, markets, offers to sell, and/or sells generic drugs throughout the United States, including in the State of Delaware, and therefore transacts business within the State of Delaware related to Novartis's claims, and/or has engaged in systematic and continuous business contacts within the State of Delaware.

22. On information and belief, Apotex Inc. knows and intends that following any approval of Apotex's ANDA No. 220471, Apotex Inc. will, in concert with Apotex Corp., manufacture and import into the United States Apotex's ANDA Product and directly or indirectly market, sell, and distribute Apotex's ANDA Product throughout the United States, including in Delaware. On information and belief, following any FDA approval of ANDA No. 220471, Apotex Inc. knows and intends that Apotex's ANDA Product will be marketed, used, distributed, offered for sale, and sold in the United States and within Delaware.

23. Apotex Inc. has previously used the process contemplated by the Hatch-Waxman Act to challenge branded pharmaceutical companies' patents by filing a certification of the type described in Section 505(j)(2)(A)(vii)(IV) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV), serving a notice letter on those companies, and engaging in patent litigation arising from the process contemplated by the Hatch-Waxman Act.

24. On information and belief, Apotex Inc., with knowledge of the Hatch-Waxman Act process and in concert with Apotex Corp., directed Apotex's Notice Letter to Novartis, an entity incorporated in Delaware, and alleged in Apotex's Notice Letter that certain claims of the Patents-in-Suit are invalid and/or not infringed. On information and belief, Apotex Inc. knowingly and deliberately challenged Novartis's patent rights and knew when it did so that it was triggering the provisions of the Hatch-Waxman Act for Novartis to bring an action for patent infringement.

25. Because Novartis is incorporated in Delaware, Novartis suffers injury and consequences from Apotex Inc.'s filing of Apotex's ANDA, challenging Novartis's patent rights in Delaware. On information and belief, Apotex Inc. knew that it was deliberately challenging the patent rights of a Delaware entity. Apotex Inc. has been a litigant in connection with at least one other infringement action under the Hatch-Waxman Act and reasonably should have anticipated that by sending Apotex's Notice Letters to Novartis, a Delaware corporation, that it would be sued in Delaware for patent infringement.

26. On information and belief, if Apotex's ANDA is approved, Apotex Inc. will

directly or indirectly market, sell, and/or distribute Apotex's ANDA Product within the United States, including in Delaware, consistent with Apotex Inc.'s practices for the marketing and distribution of other generic pharmaceutical products. On information and belief, Apotex Inc., including in concert with Apotex Corp., regularly does business in Delaware, and its practices with other generic pharmaceutical products have involved placing those products into the stream of commerce for distribution throughout the United States, including in Delaware. On information and belief, Apotex Inc.'s generic pharmaceutical products are used and/or consumed within and throughout the United States, including in Delaware. On information and belief, Apotex's ANDA Product will be prescribed by physicians practicing in Delaware, dispensed by pharmacies located within Delaware, and used by patients in Delaware. Each of these activities would have a substantial effect within Delaware and would constitute infringement of the claims of the Patents-in-Suit in the event that Apotex's ANDA Product is approved before the patents expire.

27. Alternatively, if Apotex Inc.'s connections with Delaware, including its connections with Apotex Corp., are found to be insufficient to confer personal jurisdiction, then upon information and belief, Apotex Inc. is not subject to jurisdiction in any state's courts of general jurisdiction, and exercising jurisdiction over Apotex Inc. in Delaware is consistent with the United States Constitution and laws. See Fed. R. Civ. P. 4(k)(2).

28. In addition, this Court has personal jurisdiction over Apotex because Apotex Corp. and Apotex Inc. regularly engage in patent litigation concerning FDA-approved branded drug products in this district, do not contest personal jurisdiction in this district, and have purposefully availed themselves of the rights and benefits of this Court by asserting claims and/or counterclaims in this Court. See, e.g., *Novartis Pharmaceuticals Corporation v. Apotex Inc. et al.*, Case No. 25-1330-GBW, D.I. 30 (D. Del. Jul. 21, 2026); *Bayer Intellectual Property GmbH et al. v. Apotex Inc. et al.*, Case No. 23-327-RGA, D.I. 11 (D. Del. June 30, 2023); *Bayer Pharma AG et al. v. Apotex Inc. et al.*, Case No. 22-1596-RGA, D.I. 11 (D. Del. Mar. 7, 2023); *Bayer Healthcare LLC et al. v. Apotex Inc. et al.*, Case No. 21-1429-WCB, D.I. 14 (D. Del. Mar. 1, 2022); *Bial-Portela & CA S.A. v. Apotex Inc. et al.*, Case No. 21-187-CFC, D.I. 6 (D. Del. Mar. 3, 2021); *Merck Sharp & Dohme Corp. v. Apotex Inc. et al.*, Case No. 20-749-RGA, D.I. 7 (D. Del. June 26, 2020).

VENUE

29. Plaintiff incorporates each of the preceding paragraphs as if fully set forth herein.

30. Venue is proper in this district as to Apotex Corp. pursuant to 28 U.S.C. §§ 1391 and 1400(b) because, inter alia, Apotex Corp. is a corporation organized and existing under the laws of the State of Delaware.

31. Venue is proper in this district for Apotex Inc. pursuant to 28 U.S.C. §§ 1391 and 1400(b) because, inter alia, Apotex Inc. is a corporation organized and existing under the laws of Canada and is subject to personal jurisdiction in this judicial district.

FACTUAL BACKGROUND

32. Plaintiff incorporates each of the preceding paragraphs as if fully set forth herein.

33. Mekinist®, which contains trametinib dimethyl sulfoxide, is an anticancer medication indicated for treatment of certain types of melanoma.

34. On information and belief, Apotex's ANDA Product is a generic version of the 1 mg dosage form of Novartis's Mekinist® initially approved by the FDA on May 29, 2013.

35. On information and belief, Apotex's ANDA Product is not publicly available, nor is ANDA No. 220471 accessible to the public.

COUNT I – INFRINGEMENT OF THE '304 PATENT

36. Plaintiff incorporates each of the preceding paragraphs as if fully set forth herein.

37. The '304 patent, entitled "Pharmaceutical Composition" (attached as Exhibit A), was duly and legally issued on November 12, 2013.

38. Novartis Pharmaceuticals Corporation is the owner and assignee of the '304 patent.

39. The '304 patent claims, inter alia, pharmaceutical tablets comprising trametinib dimethyl sulfoxide solvate, wherein the tablet contains from about 25% to about 89% by weight of one or more excipients, the excipients are substantially free of water, the amount of unsolvated drug does not exceed about 20%, and/or at least 50% of the drug particles have a particle size of 30 microns or less.

40. Mekinist® is covered by one or more claims of the '304 patent, including claims 1 and 8 of the '304 patent, and the '304 patent has been listed in connection with Mekinist® in the FDA's Orange Book.

41. In Apotex's Notice Letter, Apotex notified Novartis of the submission of Apotex's ANDA to the FDA. The purpose of this submission was to obtain approval under the FDCA to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Apotex's ANDA Product prior to the expiration of the '304 patent.

42. In Apotex's Notice Letter, Apotex also notified Novartis that, as part of its ANDA, Apotex had filed certifications of the type described in Section 505(j)(2)(B)(iv) of the FDCA, 21 U.S.C. § 355(j)(2)(B)(iv), with respect to the '304 patent. On information and belief, Apotex submitted its ANDA to the FDA containing certifications pursuant to 21 U.S.C. § 355(j)(2)(A)(vii)(IV) asserting that the claims of the '304 patent are invalid, unenforceable, and/or will not be infringed by the manufacture, use, offer for sale, sale, and/or importation of Apotex's ANDA Product.

43. On information and belief, Apotex's ANDA Product is covered by at least claims 1 and 8 of the '304 patent.

44. On information and belief, Apotex's ANDA Product is a pharmaceutical tablet that contains trametinib dimethyl sulfoxide solvate.

45. On information and belief, Apotex's ANDA Product contains from about 25% to about 89% by weight of one or more excipients that are substantially free of water.

46. On information and belief, the amount of unsolvated drug in Apotex's ANDA Product does not exceed about 20%.

47. On information and belief, at least 50% of the drug particles in Apotex's ANDA Product have a particle size of 30 microns or less.

48. On information and belief, Apotex's submission of Apotex's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Apotex's ANDA Product before the expiration of the '304 patent was an act of infringement of one or more claims of the '304 patent under 35 U.S.C. § 271(e)(2)(A).

49. On information and belief, Apotex will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Apotex's ANDA Product immediately and imminently upon approval of its ANDA.

50. On information and belief, the manufacture, use, sale, offer for sale, and/or importation of Apotex's ANDA Product would infringe, literally and/or under the doctrine of equivalents, one or more claims of the '304 patent, including, inter alia, claims 1 and 8 of the '304 patent.

51. On information and belief, the manufacture, use, sale, offer for sale, and/or importation of Apotex's ANDA Product in accordance with, and as directed by, its proposed product labeling would infringe one or more claims of the '304 patent, including, inter alia, claims

1 and 8 of the '304 patent.

52. On information and belief, Apotex plans and intends to, and will, actively induce infringement of the '304 patent when Apotex's ANDA is approved, and plans and intends to, and will, do so immediately and imminently upon approval. Apotex's activities will be done with knowledge of the '304 patent and specific intent to infringe that patent.

53. Notwithstanding Apotex's knowledge of the claims of the '304 patent, Apotex has continued to assert its intent to manufacture, offer for sale, sell, distribute, and/or import Apotex's ANDA Product with its product labeling following FDA approval of Apotex's ANDA prior to the expiration of the '304 patent.

54. The foregoing actions by Apotex constitute and/or will constitute infringement of one or more claims of the '304 patent and active inducement of infringement of one or more claims of the '304 patent under 35 U.S.C. § 271(a) and 35 U.S.C. § 271(b).

55. Novartis will be substantially and irreparably damaged by infringement of the claims of the '304 patent.

56. Unless Apotex is enjoined from infringing and actively inducing infringement of the claims of the '304 patent, Novartis will suffer irreparable injury. Novartis has no adequate remedy at law.

**COUNT II – DECLARATORY JUDGMENT OF INFRINGEMENT
OF THE '304 PATENT**

57. Plaintiff incorporates each of the preceding paragraphs as if fully set forth herein.

58. The Court may declare the rights and legal relations of the parties pursuant to 28 U.S.C. §§ 2201 and 2202 because there is a case of actual controversy between Novartis on the one hand and Apotex on the other regarding Apotex's infringement and active inducement of infringement by others of one or more claims of the '304 patent.

59. The Court should declare that the commercial manufacture, use, sale, offer for sale, and/or importation of Apotex's ANDA Product with its proposed labeling, or any other Apotex drug product that is covered by or whose use is covered by the '304 patent, will infringe and induce the infringement by others of the '304 patent.

COUNT III – INFRINGEMENT OF THE '706 PATENT

60. Plaintiff incorporates each of the preceding paragraphs as if fully set forth herein.

61. The '706 patent, entitled "Pharmaceutical Composition" (attached as Exhibit B),

was duly and legally issued on October 13, 2015.

62. Novartis Pharmaceuticals Corporation is the owner and assignee of the '706 patent.

63. The '706 patent claims, inter alia, pharmaceutical tablets comprising trametinib dimethyl sulfoxide solvate, wherein at least 50% of drug particles have a particle size of 30 microns or less, and/or the drug particles are micronized.

64. Mekinist® is covered by one or more claims of the '706 patent, including claims 1 and 8 of the '706 patent, and the '706 patent has been listed in connection with Mekinist® in the FDA's Orange Book.

65. In Apotex's Notice Letter, Apotex notified Novartis of the submission of Apotex's ANDA to the FDA. The purpose of this submission was to obtain approval under the FDCA to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Apotex's ANDA Product prior to the expiration of the '706 patent.

66. In Apotex's Notice Letter, Apotex also notified Novartis that, as part of its ANDA, Apotex had filed certifications of the type described in Section 505(j)(2)(B)(iv) of the FDCA, 21 U.S.C. § 355(j)(2)(B)(iv), with respect to the '706 patent. On information and belief, Apotex submitted its ANDA to the FDA containing certifications pursuant to 21 U.S.C. § 355(j)(2)(A)(vii)(IV) asserting that the claims of the '706 patent are invalid, unenforceable, and/or will not be infringed by the manufacture, use, offer for sale, sale, and/or importation of Apotex's ANDA Product.

67. On information and belief, Apotex's Notice Letter and accompanying statement did not include any allegations that Apotex's ANDA Product does not infringe claims 1, 8 and 16 of the '706 patent.

68. On information and belief, Apotex's ANDA Product is covered by at least claims 1, 8 and 16 of the '706 patent.

69. On information and belief, Apotex's ANDA Product is a pharmaceutical tablet that contains trametinib dimethyl sulfoxide solvate.

70. On information and belief, at least 50% of the drug particles in Apotex's ANDA Product have a particle size of 30 microns or less.

71. On information and belief, the drug particles are micronized in Apotex's ANDA Product.

72. On information and belief, Apotex's submission of Apotex's ANDA for the

purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Apotex's ANDA Product before the expiration of the '706 patent was an act of infringement of one or more claims of the '706 patent under 35 U.S.C. § 271(e)(2)(A).

73. On information and belief, Apotex will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Apotex's ANDA Product immediately and imminently upon approval of its ANDA.

74. On information and belief, the manufacture, use, sale, offer for sale, and/or importation of Apotex's ANDA Product would infringe, literally and/or under the doctrine of equivalents, one or more claims of the '706 patent, including, inter alia, claims 1, 8, and 16 of the '706 patent.

75. On information and belief, the manufacture, use, sale, offer for sale, and/or importation of Apotex's ANDA Product in accordance with, and as directed by, its proposed product labeling would infringe one or more claims of the '706 patent, including, inter alia, claims 1, 8, and 16 of the '706 patent.

76. On information and belief, Apotex plans and intends to, and will, actively induce infringement of the '706 patent when Apotex's ANDA is approved, and plans and intends to, and will, do so immediately and imminently upon approval. Apotex's activities will be done with knowledge of the '706 patent and specific intent to infringe that patent.

77. Notwithstanding Apotex's knowledge of the claims of the '706 patent, Apotex has continued to assert its intent to manufacture, offer for sale, sell, distribute, and/or import Apotex's ANDA Product with its product labeling following FDA approval of Apotex's ANDA prior to the expiration of the '706 patent.

78. The foregoing actions by Apotex constitute and/or will constitute infringement of one or more claims of the '706 patent and active inducement of infringement of one or more claims of the '706 patent under 35 U.S.C. § 271(a) and 35 U.S.C. § 271(b).

79. Novartis will be substantially and irreparably damaged by infringement of the claims of the '706 patent.

80. Unless Apotex is enjoined from infringing and actively inducing infringement of the claims of the '706 patent, Novartis will suffer irreparable injury. Novartis has no adequate remedy at law.

COUNT IV – DECLARATORY JUDGMENT OF INFRINGEMENT

OF THE '706 PATENT

81. Plaintiff incorporates each of the preceding paragraphs as if fully set forth herein.

82. The Court may declare the rights and legal relations of the parties pursuant to 28 U.S.C. §§ 2201 and 2202 because there is a case of actual controversy between Novartis on the one hand and Apotex on the other regarding Apotex's infringement and active inducement of infringement by others of one or more claims of the '706 patent.

83. The Court should declare that the commercial manufacture, use, sale, offer for sale, and/or importation of Apotex's ANDA Product with its proposed labeling, or any other Apotex drug product that is covered by or whose use is covered by the '706 patent, will infringe and induce the infringement by others of the '706 patent.

COUNT V – INFRINGEMENT OF THE '941 PATENT

84. Plaintiff incorporates each of the preceding paragraphs as if fully set forth herein.

85. The '941 patent, entitled "Pharmaceutical Composition" (attached as Exhibit C), was duly and legally issued on March 1, 2016.

86. Novartis Pharmaceuticals Corporation is the owner and assignee of the '941 patent.

87. The '941 patent claims, inter alia, pharmaceutical tablets comprising trametinib dimethyl sulfoxide solvate, wherein the tablets contain from about 25% to about 89% by weight of one or more excipients and the excipients are substantially free of water, and/or at least 50% of the drug particles have a particle size of 30 microns or less.

88. Mekinist® is covered by one or more claims of the '941 patent, including claims 1 and 8 of the '941 patent, and the '941 patent has been listed in connection with Mekinist® in the FDA's Orange Book.

89. In Apotex's Notice Letter, Apotex notified Novartis of the submission of Apotex's ANDA to the FDA. The purpose of this submission was to obtain approval under the FDCA to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Apotex's ANDA Product prior to the expiration of the '941 patent.

90. In Apotex's Notice Letter, Apotex also notified Novartis that, as part of its ANDA, Apotex had filed certifications of the type described in Section 505(j)(2)(B)(iv) of the FDCA, 21 U.S.C. § 355(j)(2)(B)(iv), with respect to the '941 patent. On information and belief, Apotex submitted its ANDA to the FDA containing certifications pursuant to 21 U.S.C. § 355(j)(2)(A)(vii)(IV) asserting that the claims of the '941 patent are invalid,

unenforceable, and/or will not be infringed by the manufacture, use, offer for sale, sale, and/or importation of Apotex's ANDA Product.

91. On information and belief, Apotex's ANDA Product is covered by at least claims 1 and 8 of the '941 patent.

92. On information and belief, Apotex's ANDA Product is a pharmaceutical tablet that contains trametinib dimethyl sulfoxide solvate.

93. On information and belief, Apotex's ANDA Product contains from about 25% to about 89% by weight of one or more excipients that are substantially free of water.

94. On information and belief, at least 50% of the drug particles in Apotex's ANDA Product have a particle size of 30 microns or less.

95. On information and belief, Apotex's submission of Apotex's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Apotex's ANDA Product before the expiration of the '941 patent was an act of infringement of one or more claims of the '941 patent under 35 U.S.C. § 271(e)(2)(A).

96. On information and belief, Apotex will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Apotex's ANDA Product immediately and imminently upon approval of its ANDA.

97. On information and belief, the manufacture, use, sale, offer for sale, and/or importation of Apotex's ANDA Product would infringe, literally and/or under the doctrine of equivalents, one or more claims of the '941 patent, including, inter alia, claims 1 and 8 of the '941 patent.

98. On information and belief, the manufacture, use, sale, offer for sale, and/or importation of Apotex's ANDA Product in accordance with, and as directed by, its proposed product labeling would infringe one or more claims of the '941 patent, including, inter alia, claims 1 and 8 of the '941 patent.

99. On information and belief, Apotex plans and intends to, and will, actively induce infringement of the '941 patent when Apotex's ANDA is approved, and plans and intends to, and will, do so immediately and imminently upon approval. Apotex's activities will be done with knowledge of the '941 patent and specific intent to infringe that patent.

100. Notwithstanding Apotex's knowledge of the claims of the '941 patent, Apotex has continued to assert its intent to manufacture, offer for sale, sell, distribute, and/or import Apotex's

ANDA Product with its product labeling following FDA approval of Apotex's ANDA prior to the expiration of the '941 patent.

101. The foregoing actions by Apotex constitute and/or will constitute infringement of one or more claims of the '941 patent and active inducement of infringement of one or more claims of the '941 patent under 35 U.S.C. § 271(a) and 35 U.S.C. § 271(b).

102. Novartis will be substantially and irreparably damaged by infringement of the claims of the '941 patent.

103. Unless Apotex is enjoined from infringing and actively inducing infringement of the claims of the '941 patent, Novartis will suffer irreparable injury. Novartis has no adequate remedy at law.

COUNT VI – DECLARATORY JUDGMENT OF INFRINGEMENT
OF THE '941 PATENT

104. Plaintiff incorporates each of the preceding paragraphs as if fully set forth herein.

105. The Court may declare the rights and legal relations of the parties pursuant to 28 U.S.C. §§ 2201 and 2202 because there is a case of actual controversy between Novartis on the one hand and Apotex on the other regarding Apotex's infringement and active inducement of infringement by others of one or more claims of the '941 patent.

106. The Court should declare that the commercial manufacture, use, sale, offer for sale, and/or importation of Apotex's ANDA Product with its proposed labeling, or any other Apotex drug product that is covered by or whose use is covered by the '941 patent, will infringe and induce the infringement by others of the '941 patent.

COUNT VII – INFRINGEMENT OF THE '021 PATENT

107. Plaintiff incorporates each of the preceding paragraphs as if fully set forth herein.

108. The '021 patent, entitled "Pharmaceutical Composition" (attached as Exhibit D), was duly and legally issued on July 26, 2016.

109. Novartis Pharmaceuticals Corporation is the owner and assignee of the '021 patent.

110. The '021 patent claims, inter alia, pharmaceutical tablets comprising trametinib dimethyl sulfoxide solvate, wherein drug particles are micronized, and/or at least 50% of the drug particles have a particle size of 30 microns or less.

111. Mekinist® is covered by one or more claims of the '021 patent, including claims 1, 8, and 17 of the '021 patent, and the '021 patent has been listed in connection with Mekinist® in

the FDA's Orange Book.

112. In Apotex's Notice Letter, Apotex notified Novartis of the submission of Apotex's ANDA to the FDA. The purpose of this submission was to obtain approval under the FDCA to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Apotex's ANDA Product prior to the expiration of the '021 patent.

113. In Apotex's Notice Letter, Apotex also notified Novartis that, as part of its ANDA, Apotex had filed certifications of the type described in Section 505(j)(2)(B)(iv) of the FDCA, 21 U.S.C. § 355(j)(2)(B)(iv), with respect to the '021 patent. On information and belief, Apotex submitted its ANDA to the FDA containing certifications pursuant to 21 U.S.C.

§ 355(j)(2)(A)(vii)(IV) asserting that the claims of the '021 patent are invalid, unenforceable, and/or will not be infringed by the manufacture, use, offer for sale, sale, and/or importation of Apotex's ANDA Product.

114. On information and belief, Apotex's Notice Letter and accompanying statement did not include any allegations that Apotex's ANDA Product does not infringe claims 1, 8 and 17 of the '021 patent.

115. On information and belief, Apotex's ANDA Product is covered by at least claims 1, 8, and 17 of the '021 patent.

116. On information and belief, Apotex's ANDA Product is a pharmaceutical tablet that contains trametinib dimethyl sulfoxide solvate.

117. On information and belief, the drug particles in Apotex's ANDA Product are micronized.

118. On information and belief, at least 50% of the drug particles in Apotex's ANDA Product have a particle size of 30 microns or less.

119. On information and belief, Apotex's submission of Apotex's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Apotex's ANDA Product before the expiration of the '021 patent was an act of infringement of one or more claims of the '021 patent under 35 U.S.C. § 271(e)(2)(A).

120. On information and belief, Apotex will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Apotex's ANDA Product immediately and imminently upon approval of its ANDA.

121. On information and belief, the manufacture, use, sale, offer for sale, and/or

importation of Apotex's ANDA Product would infringe, literally and/or under the doctrine of equivalents, one or more claims of the '021 patent, including, inter alia, claims 1, 8, and 17 of the '021 patent.

122. On information and belief, the manufacture, use, sale, offer for sale, and/or importation of Apotex's ANDA Product in accordance with, and as directed by, its proposed product labeling would infringe one or more claims of the '021 patent, including, inter alia, claims 1, 8, and 17 of the '021 patent.

123. On information and belief, Apotex plans and intends to, and will, actively induce infringement of the '021 patent when Apotex's ANDA is approved, and plans and intends to, and will, do so immediately and imminently upon approval. Apotex's activities will be done with knowledge of the '021 patent and specific intent to infringe that patent.

124. Notwithstanding Apotex's knowledge of the claims of the '021 patent, Apotex has continued to assert its intent to manufacture, offer for sale, sell, distribute, and/or import Apotex's ANDA Product with its product labeling following FDA approval of Apotex's ANDA prior to the expiration of the '021 patent.

125. The foregoing actions by Apotex constitute and/or will constitute infringement of one or more claims of the '021 patent and active inducement of infringement of one or more claims of the '021 patent under 35 U.S.C. § 271(a) and 35 U.S.C. § 271(b).

126. Novartis will be substantially and irreparably damaged by infringement of the claims of the '021 patent.

127. Unless Apotex is enjoined from infringing and actively inducing infringement of the claims of the '021 patent, Novartis will suffer irreparable injury. Novartis has no adequate remedy at law.

COUNT VIII – DECLARATORY JUDGMENT OF INFRINGEMENT
OF THE '021 PATENT

128. Plaintiff incorporates each of the preceding paragraphs as if fully set forth herein.

129. The Court may declare the rights and legal relations of the parties pursuant to 28 U.S.C. §§ 2201 and 2202 because there is a case of actual controversy between Novartis on the one hand and Apotex on the other regarding Apotex's infringement and active inducement of infringement by others of one or more claims of the '021 patent.

130. The Court should declare that the commercial manufacture, use, sale, offer for sale, and/or importation of Apotex's ANDA Product with its proposed labeling, or any other Apotex drug product that is covered by or whose use is covered by the '021 patent, will infringe and induce the infringement by others of the '021 patent.

COUNT IX – INFRINGEMENT OF THE '781 PATENT

131. Plaintiff incorporates each of the preceding paragraphs as if fully set forth herein.

132. The '781 patent, entitled "Pharmaceutical combination of MEK inhibitor and B-Raf inhibitors" (attached as Exhibit E), was duly and legally issued on April 22, 2014.

133. Novartis Pharmaceuticals Corporation is the owner and assignee of the '781 patent.

134. The '781 patent claims, inter alia, combinations of trametinib, or a pharmaceutically acceptable salt or solvate thereof, and dabrafenib, or a pharmaceutically acceptable salt thereof. The '781 patent also claims, inter alia, a method of treating melanoma in a human patient by administering trametinib, or a pharmaceutically acceptable salt or solvate thereof, and dabrafenib, or a pharmaceutically acceptable salt thereof.

135. Mekinist®, and the use of Mekinist®, are covered by one or more claims of the '781 patent, including claims 1 and 7 of the '781 patent, and the '781 patent has been listed in connection with Mekinist® in the FDA's Orange Book.

136. In Apotex's Notice Letter, Apotex notified Novartis of the submission of Apotex's ANDA to the FDA. The purpose of this submission was to obtain approval under the FDCA to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Apotex's ANDA Product prior to the expiration of the '781 patent.

137. In Apotex's Notice Letter, Apotex also notified Novartis that, as part of its ANDA, Apotex had filed certifications of the type described in Section 505(j)(2)(B)(iv) of the FDCA, 21 U.S.C. § 355(j)(2)(B)(iv), with respect to the '781 patent. On information and belief, Apotex submitted its ANDA to the FDA containing certifications pursuant to 21 U.S.C. § 355(j)(2)(A)(vii)(IV) asserting that the claims of the '781 patent are invalid, unenforceable, and/or will not be infringed by the manufacture, use, offer for sale, sale, and/or importation of Apotex's ANDA Product.

138. On information and belief, Apotex's Notice Letter and accompanying statement do not identify a factual or legal basis to support invalidity of the '781 patent.

139. On information and belief, Apotex's ANDA Product and/or the use of Apotex's

ANDA Product is covered by at least claims 1 and 7 of the '781 patent.

140. On information and belief, Apotex's ANDA Product is a pharmaceutical tablet that contains trametinib dimethyl sulfoxide solvate.

141. On information and belief, Apotex is also seeking FDA approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of generic dabrafenib oral capsules. *See Novartis Pharmaceuticals Corp. v. Apotex Inc. & Apotex Corp.* C.A. No. 26-cv-141, D.I. 1 (D. Del. Feb. 6, 2026). On information and belief, Apotex will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of generic dabrafenib upon receiving FDA approval to do so.

142. On information and belief, Apotex seeks approval to market Apotex's ANDA Product and generic dabrafenib simultaneously in the marketplace with the expectation and intent that the products will be prescribed, dispensed and administered together as a combination.

143. On information and belief, Apotex's business strategy includes the simultaneous and contemporaneous marketing and/or sale of Apotex's ANDA Product to be used in combination with dabrafenib.

144. On information and belief, Apotex expects and intends that healthcare providers will prescribe Apotex's ANDA Product with dabrafenib.

145. On information and belief, Apotex's anticipated commercial activities include affirmative acts encouraging the covered combination and combination therapy, including but not limited to product catalogs, formulary submissions, pricing materials, reimbursement materials, sales communications, promotional materials, website content, customer communications, and other materials directed to healthcare providers, payors, pharmacies, distributors, or patients.

146. On information and belief, Apotex's ANDA Product and its generic dabrafenib are specifically designed, labeled, packaged, marketed, distributed, and sold with the expectation and intent that they will be used together in therapeutic regimens to treat melanoma in a patient.

147. On information and belief, Apotex knows and intends that healthcare providers and patients will directly infringe one or more claims of the '781 patent, including inter alia claims 1 and 7, by prescribing a combination of Apotex's ANDA Product with dabrafenib and/or administering Apotex's ANDA Product with dabrafenib. 148. On information and belief, Apotex intends to cause and encourage such acts of infringement.

149. On information and belief, Apotex's submission of Apotex's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Apotex's ANDA Product before the expiration of the '781 patent was an act of infringement of one or more claims of the '781 patent under 35 U.S.C. § 271(e)(2)(A).

150. On information and belief, Apotex will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Apotex's ANDA Product immediately and imminently upon approval of its ANDA.

151. On information and belief, the manufacture, use, sale, offer for sale, and/or importation of Apotex's ANDA Product would infringe, literally and/or under the doctrine of equivalents, one or more claims of the '781 patent, including, inter alia, claims 1 and 7 of the '781 patent.

152. On information and belief, the manufacture, use, sale, offer for sale, and/or importation of Apotex's ANDA Product in accordance with, and as directed by, its proposed product labeling would infringe one or more claims of the '781 patent, including, inter alia, claims 1 and 7 of the '781 patent.

153. On information and belief, Apotex plans and intends to, and will, actively induce infringement of the '781 patent when Apotex's ANDA is approved, and plans and intends to, and will, do so immediately and imminently upon approval. Apotex's activities will be done with knowledge of the '781 patent and specific intent to infringe that patent.

154. Notwithstanding Apotex's knowledge of the claims of the '781 patent, Apotex has continued to assert its intent to manufacture, offer for sale, sell, distribute, and/or import Apotex's ANDA Product with its product labeling, simultaneously and contemporaneously with its generic dabrafenib product, following FDA approval of Apotex's ANDA prior to the expiration of the '781 patent.

155. The foregoing actions by Apotex constitute and/or will constitute infringement of one or more claims of the '781 patent and active inducement of infringement of one or more claims of the '781 patent under 35 U.S.C. § 271(a) and 35 U.S.C. § 271(b).

156. Novartis will be substantially and irreparably damaged by infringement of the claims of the '781 patent.

157. Unless Apotex is enjoined from infringing and actively inducing infringement of the claims of the '781 patent, Novartis will suffer irreparable injury. Novartis has no adequate

remedy at law.

COUNT X – DECLARATORY JUDGMENT OF INFRINGEMENT
OF THE '781 PATENT

158. Plaintiff incorporates each of the preceding paragraphs as if fully set forth herein.

159. The Court may declare the rights and legal relations of the parties pursuant to 28 U.S.C. §§ 2201 and 2202 because there is a case of actual controversy between Novartis on the one hand and Apotex on the other regarding Apotex's infringement and active inducement of infringement by others of one or more claims of the '781 patent.

160. The Court should declare that the commercial manufacture, use, sale, offer for sale, and/or importation of Apotex's ANDA Product with its proposed labeling, or any other Apotex drug product that is covered by or whose use is covered by the '781 patent, will infringe and induce the infringement by others of the '781 patent.

COUNT XI – INFRINGEMENT OF THE '869 PATENT

161. Plaintiff incorporates each of the preceding paragraphs as if fully set forth herein.

162. The '869 patent, entitled "Method of Adjuvant Cancer Treatment" (attached as Exhibit F), was duly and legally issued on December 22, 2020.

163. Novartis Pharmaceuticals Corporation is the owner and assignee of the '869 patent.

164. The '869 patent claims, inter alia, a method for providing adjuvant treatment to a patient with a prior diagnosis of melanoma which has been resected, comprising the steps of: a) administering therapeutically effective doses of dabrafenib and trametinib, wherein said dabrafenib is administered at an amount of 150 mg twice a day and said trametinib is administered at an amount of 2 mg once daily; and b) increasing relapse-free survival of said patient after resection of said melanoma.

165. The use of Mekinist® is covered by one or more claims of the '869 patent, including claim 1 of the '869 patent, and the '869 patent has been listed in connection with Mekinist® in the FDA's Orange Book.

166. Apotex is seeking FDA approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Apotex's ANDA Product prior to the expiration of the '869 patent.

167. On information and belief, the use of Apotex's ANDA Product in accordance with its proposed labeling is covered by at least claim 1 of the '869 patent.

168. On information and belief, Apotex's ANDA Product is a pharmaceutical tablet that contains trametinib dimethyl sulfoxide solvate.

169. On information and belief, Apotex is seeking FDA approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of generic dabrafenib oral capsules. See *Novartis Pharmaceuticals Corp. v. Apotex Inc. & Apotex Corp.* C.A. No. 26-cv-141, D.I. 1 (D. Del. Feb. 6, 2026). On information and belief, Apotex will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of generic dabrafenib upon receiving FDA approval to do so.

170. On information and belief, Apotex seeks approval to market Apotex's ANDA Product and generic dabrafenib product simultaneously in the marketplace with the expectation and intent that the products will be prescribed, dispensed and administered together as a combination.

171. On information and belief, Apotex's business strategy includes the simultaneous and contemporaneous marketing and/or sale of Apotex's ANDA Product to be used in combination with dabrafenib.

172. On information and belief, Apotex expects and intends that healthcare providers will prescribe Apotex's ANDA Product with dabrafenib.

173. On information and belief, Apotex's anticipated commercial activities include affirmative acts encouraging the covered combination therapy, including but not limited to product catalogs, formulary submissions, pricing materials, reimbursement materials, sales communications, promotional materials, website content, customer communications, and other materials directed to healthcare providers, payors, pharmacies, distributors, or patients.

174. On information and belief, Apotex's ANDA Product and its generic dabrafenib are specifically designed, labeled, packaged, marketed, distributed, and sold with the expectation and intent that they will be used together in therapeutic regimens to provide adjuvant treatment of a patient with melanoma which has been resected, comprising the steps of a) administering therapeutically effective doses of dabrafenib and trametinib, wherein said dabrafenib is administered at an amount of 150 mg twice a day and said trametinib is administered at an amount of 2 mg once daily; and b) increasing relapse-free survival of said patient after resection of said

melanoma.

175. On information and belief, Apotex knows and intends that healthcare providers and patients will directly infringe one or more claims of the '869 patent, including inter alia claim 1, by prescribing a combination of Apotex's ANDA Product with dabrafenib and/or administering Apotex's ANDA Product with dabrafenib.

176. On information and belief, Apotex intends to cause and encourage such acts of infringement.

177. On information and belief, Apotex will engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Apotex's ANDA Product immediately and imminently upon approval of its ANDA.

178. On information and belief, the manufacture, use, sale, offer for sale, and/or importation of Apotex's ANDA Product would infringe, literally and/or under the doctrine of equivalents, one or more claims of the '869 patent, including, inter alia, claim 1 of the '869 patent.

179. On information and belief, the manufacture, use, sale, offer for sale, and/or importation of Apotex's ANDA Product in accordance with, and as directed by, its proposed product labeling would infringe one or more claims of the '869 patent, including, inter alia, claim 1 of the '869 patent.

180. On information and belief, Apotex plans and intends to, and will, actively induce infringement of the '869 patent when Apotex's ANDA is approved, and plans and intends to, and will, do so immediately and imminently upon approval. Apotex's activities will be done with knowledge of the '869 patent and specific intent to infringe that patent.

181. Notwithstanding Apotex's knowledge of the claims of the '869 patent, Apotex has continued to assert its intent to manufacture, offer for sale, sell, distribute, and/or import Apotex's ANDA Product with its product labeling, simultaneously and contemporaneously with its generic dabrafenib product, following FDA approval of Apotex's ANDA prior to the expiration of the '869 patent.

182. The foregoing actions by Apotex constitute and/or will constitute infringement of one or more claims of the '869 patent and active inducement of infringement of one or more claims of the '869 patent under 35 U.S.C. § 271(a) and 35 U.S.C. § 271(b).

183. Novartis will be substantially and irreparably damaged by infringement of the claims of the '869 patent.

184. Unless Apotex is enjoined from infringing and actively inducing infringement of the claims of the '869 patent, Novartis will suffer irreparable injury. Novartis has no adequate remedy at law.

COUNT XII – DECLARATORY JUDGMENT OF INFRINGEMENT
OF THE '869 PATENT

185. Plaintiff incorporates each of the preceding paragraphs as if fully set forth herein.

186. The Court may declare the rights and legal relations of the parties pursuant to 28 U.S.C. §§ 2201 and 2202 because there is a case of actual controversy between Novartis on the one hand and Apotex on the other regarding Apotex's infringement and active inducement of infringement by others of one or more claims of the '869 patent.

187. The Court should declare that the commercial manufacture, use, sale, offer for sale, and/or importation of Apotex's ANDA Product with its proposed labeling, or any other Apotex drug product that is covered by or whose use is covered by the '869 patent, will infringe and induce the infringement by others of the '869 patent.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests the following relief:

a) A judgment that one or more claims of each of the '304 patent, the '706 patent, the '941 patent, the '021 patent, and the '781 patent has been infringed under 35 U.S.C. § 271(e)(2) by Apotex's submission to the FDA of Apotex's ANDA;

b) A judgment ordering that the effective date of any FDA approval of Apotex's ANDA be not earlier than the latest of the expiration dates of the Patents-in-Suit, inclusive of any extension(s) and additional period(s) of exclusivity;

c) A permanent injunction enjoining Apotex, and all persons acting in concert with Apotex, from the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Apotex's ANDA Product, or any other drug product covered by or whose use is covered by one or more claims of one or more of the Patents-in-Suit, prior to the expiration of the Patents-in-Suit, inclusive of any extension(s) and additional period(s) of exclusivity;

d) A judgment declaring that the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Apotex's ANDA Product, or any other drug product which is covered by or whose use is covered by one or more claims of one or more of the Patents-

in-Suit, prior to the expiration of the Patents-in-Suit, will infringe and/or induce the infringement of the patents;

- e) A declaration that this is an exceptional case and an award of attorneys' fees pursuant to 35 U.S.C. § 285;
- f) Novartis's costs and expenses in this action; and
- g) Such further and other relief as the Court may deem just and proper.

Dated: October 5, 2026

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